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CASE #	CASE NAME	HEARING NAME
CVRI2203868	C. VS COUNTY OF RIVERSIDE	MOTION TO TAX COSTS

Tentative Ruling: The Court GRANTS the motion to tax costs in part as to the third party subpoenas (\$7,583.92). Plaintiff's motion to tax is MOOT as to the expert witness fees (\$23,275.00) and private investigation fees (\$3,984.40).

Factual / Procedural Context:

This personal injury action arises from Plaintiff J.C.'s ("Plaintiff") allegations of childhood sexual abuse while placed in foster care under the supervision of Defendant County of Riverside ("County").

The operative complaint is the First Amended Complaint ("FAC"), which Plaintiff filed on October 21, 2022, against County and Does 2 through 25, alleging causes of action for (1) Negligence (against County only) and (2) Negligence (against Does only).

On March 11, 2026, the Court granted County's motion for summary judgment against Plaintiff, and ordered that County was entitled to recover its costs according to proof.

On April 10, 2026, County filed a Memorandum of Costs, seeking a total of \$45,608.62.

Plaintiff moves to tax all of County's claimed costs, including its deposition costs (\$2,516.95), service of process fees (\$5,805.20), expert witness fees (\$23,275.00), and other costs (\$13,827.97). Plaintiff argues that the cost memorandum lacks sufficient detail and documentation to support the costs and further contends that the costs were not necessary and reasonable to the conduct of the litigation.

In opposition, County withdraws its requests for \$23,275.00 in expert witness fees and \$3,984.40 in private investigation fees. County then contends that its remaining costs are recoverable.

As of June 4, 2026, no reply has been posted to eCourt.

Analysis

Except as otherwise expressly provided by statute, the party who prevails in any action or proceeding "is entitled as a matter of right to recover costs." (C.C.P. § 1032(b).)

Code of Civil Procedure section 1033.5(a) contains a list of items specifically allowed as recoverable costs, and section 1033.5(b) contains a list of items that "are not allowable as costs, except when expressly authorized by law." An item neither specifically allowable under subdivision (a) nor prohibited under subdivision (b) may be

allowed or denied in the discretion of the court if certain requirements are satisfied. (C.C.P. § 1033.5(c)(4).) In particular, the item “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “shall be reasonable in amount.” (C.C.P. § 1033.5(c)(2) and (3).)

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) “If the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Id.* at 774.)

Plaintiff argues that County’s request for costs is not supported by documentation. However, a “verified memorandum of costs is prima facie evidence of their propriety,” and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) Further, mere statements in the points and authorities and declaration of counsel are insufficient to rebut the prima facie showing. (*Id.* at 1266.) As such, Plaintiff’s argument as to insufficient documentation fails.

A. Deposition Costs (\$2,516.95)

C.C.P. § 1033.5(a)(3) permits costs related to the “[t]aking, video recording, and transcribing necessary depositions.”

Here, County seeks \$2,000.60 for the transcript and video cancellation for Plaintiff’s deposition scheduled for November 13, 2024, as Plaintiff failed to appear. Plaintiff’s non-appearance was noted in the deposition transcript. Non-appearance fees are recoverable when related to a deposition. (*Garcia v. Tempur-Pedic North America, LLC* (2024) 98 Cal.App.5th 819, 825.) In determining whether costs for a non-appearance were necessary, the court must consider “whether the costs were reasonably necessary to litigating the case **at the time they were incurred.**” (*Ibid.* [emphasis added].) Plaintiff’s deposition is highly relevant to this case. As such, the non-appearance fees are appropriate.

County further seeks \$990.00 for the transcript of Plaintiff’s deposition, dated December 17, 2025, which Plaintiff does not contest. County also claims \$201.35 in costs for the transcript of Gregory Farley, C.N.A. County alleges that Farley’s deposition was taken because he was a percipient witness who Plaintiff identified in her discovery responses. Accordingly, Farley’s deposition costs were reasonably necessary to litigating the case at the time they were incurred. **DENY.**

B. Service of Process Fees (\$5,805.20)

Plaintiff seeks to strike the service of process fees because the memorandum of costs contain several duplicate entries for the same individuals. In its reply, County states that any duplicate entries reflect multiple service attempts or multiple subpoenas. County then provides a table identifying the process server, recipient, and number of

attempts at service. (Maccarone Decl., Exh. 2.) C.C.P. §1033.5(a)(4) allows recovery of service of process by a public officer, registered process server or other means. **DENY.**

C. Other Costs

1. Filing and Motion Fees (\$1,218.15)

In its reply, County clarifies that \$1,218.15 of the “other” costs were for filing and motion fees. C.C.P. § 1033.5(a)(1) permits the recovery of filing and motion fees. **DENY.**

2. Third Party Subpoenas (\$7,583.92)

Plaintiff argues that “[f]ees related to subpoenas for Plaintiff’s medical records are not reasonably necessary to the litigation.” (Motion, p. 6.) County contends that Plaintiff’s allegations of sexual abuse occurred more than 50 years ago, so the records were necessary to establish a timeline and test Plaintiff’s claims. However, the FAC does not allege that Plaintiff sought medical treatment for her sexual abuse or reported it to any medical providers. Although County attempts to argue that the business record subpoenas were not investigation expenses because they are foundational to conducting appropriate depositions of Plaintiff and her witnesses, County fails to explain how this is so. Without a proper explanation, the record subpoenas appear to be mere investigation expenses, which are not permitted. (C.C.P. § 1033.5(b)(2).) **GRANT.**

3. Miscellaneous Fees (\$550.00)

County seeks \$50.00 for a conference room to conduct Plaintiff’s independent medical examination, and \$500.00 to produce copies of the Welfare & Institutions Code and Health & Safety Code in effect at the time of the alleged abuse, which were used for the motion for summary judgment. The Court took judicial notice of, and relied upon, the prior versions of these statutes in deciding the motion for summary judgment. **DENY.**

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CASE #	CASE NAME	HEARING NAME
CVRI2502132	CENTERPOINT PROPERTIES TRUST VS VOGUEBAY, LLC	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: The Court GRANTS both parties’ Requests for Judicial Notice. The Court OVERRULES plaintiff’s objections. The Court GRANTS the Motion for Summary Judgment. The claims are barred under the doctrine of collateral estoppel.

Factual / Procedural Context:

This is a breach of contract case. On October 17, 2013, Defendant Voguebay, LLC (“Voguebay” or “Tenant”) entered into a written lease agreement (“Lease”) with